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Transgender Inclusion in Sport

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Questions about transgender individuals' place in sport persist. Therefore, the purpose of this paper was to focus on transgender inclusion in sport. Drawing from varied perspectives, the authors present five reasons for inclusion, basing their arguments on sport as a human right, fairness, gendered notions of athleticism, well-being, and economics. The authors then present a multilevel model for including transgender athletes, coaches, and administrators in sport, identifying factors at the macro-, meso-, and micro-levels of analysis.

Keywords: LGBTQ+, trans athletes, diversity, human rights, sport management

In 2021, transgender[1] individuals in sport experienced unparalleled gains and frustrating setbacks. On the one hand, the Women's National Basketbal Association's Layshia Clarendon rewrote the script for athletes in women's sport since they came out as "non-cisgender" in 2015 (Clarendon, 2015), later publicly announcing they identify as nonbinary and that they had top surgery (Clarendon, 2021). Internationally, New Zealand weightlifter Laurel Hubbard and Canadian soccer player Quinn became the first openly transgender athletes to compete in the Olympics. Quinn, who won a gold medal, commented, "Sports bring me so much joy, so hopefully I can pass that message along and be a role model for younger folks, seeing that they can be themselves and they can also have a place here and they can be Olympic champions" (Armour, 2021, para. 6). On the other hand, transgender athletes at the collegiate and high school levels encountered new barriers. As of August 2021, legislators in 37 states had proposed legislation that would limit transgender girls' and women's participation in school sports (Hunt, 2021), and most were under the auspices of protecting women and saving their sport. Though the nature of the bills varied, if passed, the end result would be the prohibition of transgender girls and women participating in sex-segregated sports that are consistent with their gender identity and expression. Quinn was seemingly aware of these contrasts, saying, "Mostly, I feel aware of the realities. Trans girls being banned from sports. Trans women facing discrimination and bias while trying to pursue their Olympic dreams. The fight isn't close to over . . . and I'll celebrate when we're all here" (ESPN, 2021, para. 5).

Similar examples are available for transgender employees, including coaches and sport managers. Transgender workers face limited access to employment, routinely encounter discrimination at work, and because of these poor conditions, face elevated unemployment risks (Carpenter et al., 2020). Not surprisingly, relative to their peers, transgender individuals are more likely to experience poverty, have lower household incomes, and report lower levels of subjective health (Carpenter et al., 2020). These systemic patterns of inequity might soon change, though. In a landmark decision (*Bostock V. Clayton County*), the Supreme Court held that protections against sex discrimination, as afforded by Title VII of the Civil Rights Act of 1964, included employment discrimination based on sexual orientation and transgender status (Equal Employment Opportunity Commission, 2021). The ruling impacts all private workplaces with 15 or more employees, state and local government entities employing 15 or more people, the federal government, and unions. The law protects job applicants, people currently employed, and those formerly employed by the organization. Even though most states do not prohibit discrimination on the basis of sexual orientation and gender identity, the *Bostock* decision renders this lack of statewide employment protections moot. In short, *Bostock* has the potential to dramatically reshape the experiences of transgender people working in sport.

As these examples illustrate, the opportunities for and experiences of transgender individuals in sport is uneven. Though the transgender community has seen many successes, setbacks are all too common, and questions about their place in sport persist. In this paper, we focus on transgender inclusion in sport. To do so, we first present a case for why transgender individuals should be included in sport, and then transition to outlining strategies coaches and sport managers can use to create inclusive, welcoming teams and sport organizations.

The Case for Transgender Inclusion

Drawing from our previous writing on the topic (Cunningham, 2021; Cunningham et al., 2021; Isard, 2021), we highlight five reasons for transgender inclusion in sport: sport as a human right, fairness, gendered notions of athleticism, well-being, and economics. Given that (a) state legislatures have sought to limit transgender boys and men from participating in interscholastic and intercollegiate sport (Hunt, 2021) and (b) federal law now prohibits transgender discrimination in employment, we focus our discussion in this section on athletes. We do note, though, that many of the arguments have clear parallels for the employment context.

Sport as a Human Right

Fundamentally, sport is a human right, and therefore, a right of transgender athletes. The right of all people to be active sport participants is neither new nor radical. One of the seven fundamental principles of Olympism (International Olympic Committee, 2020, p. 11) reads as follows:

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> *The practice of sport is a human right*. Every individual must have the possibility of practicing sport, *without discrimination of any kind* and in the Olympic spirit, which requires mutual understanding with a spirit of friendship, solidarity and fair play. (emphasis added)

Consider, too, the Australian Human Rights Commission, which holds that "participation in sport is a human right. We are all born free and equal in dignity and rights" (Australian Human Rights Commission, 2019, para. 9). USA Triathlon used similar language when the governing body issued a statement in support of transgender athletes:

> At USA Triathlon, we believe that access to sport is a human right. We recognize the positive impact sport has on living a happy and healthy life, and we believe it must be accessible and inclusive to all. We do not tolerate discrimination of any form toward anyone in our community. (USA Triathlon, 2021, para. 1)

Consistent with these sport governing bodies, we believe that sport is a right for all people, and rationales for inclusion stem from this foundation.

Fairness

Fairness represents another reason to include transgender individuals in sport. Simply, it is fair to include all girls and all women in girls' and women's sport, respectively—just as it is fair to include all boys and men in boys' and men's sport. As sport generally is divided by gender, any person in that gender has a right to participate, pursuant to any other regulations in place that may, for example, create age or weight classes (Buzuvis, 2021; Lucas-Carr & Krane, 2012).

Of course, opponents of inclusive sport might also point to a fairness argument, suggesting that transgender women have an unfair advantage over their cisgender counterparts. In Mississippi, for example, Governor Tate Reeves signed the "Mississippi Fairness Act" into law, barring transgender girls from competing on female teams (Ermyas & Wakeam, 2021). The underlying rationale of the bill was that athletes assigned male at birth are naturally better than athletes assigned female at birth, creating a competitive advantage.

Such statements are not grounded in science, however. In their systematic review of the literature, Jones et al. (2017) found no consistent empirical evidence that transgender individuals have a performance advantage over their cisgender counterparts. Others disagree, noting muscular differences that develop during puberty persist even when athletes undergo testosterone suppression (Harper et al., 2021; Richardson & Chen, 2020). It is worth noting, though, that possible differences in strength or testosterone are not the same as athletic performance. The latter, which was the focus of Jones et al.'s review, involves strength, but also requires agility, sport acumen, and skills. Recognizing this distinction, Eric Vilain, of the University of California, Los Angeles Institute for Society and Genetics and advisor to both the International Olympic Committee and National Collegiate Athletic Association, commented:

> But the question is whether there is in real life, during actual competitions, an advantage of performance linked to this male hormone and whether trans athletes are systematically winning all competitions. The answer to this latter question, are trans athletes winning everything, is simple—that's not the case. (as cited in Ermyas & Wakeam, 2021, para. 8)

Thus, efforts to curb transgender athlete participation appear to be based on preconceptions of performance—not science; as such, the fairest approach to delivering sport is based on transgender inclusion.

Gendered Notions of Athleticism

Notions of fairness, or the lack thereof, are closely associated with gendered ideas of athleticism. Opponents of transgender inclusion frequently presuppose that athletes assigned male at birth are better athletes than those assigned female. Even those who claim to support lesbian, gay, bisexual, transgender, and queer or questioning (LGBTQ+) rights and women's rights in sport contend it is not "fair" for trans women to compete in athletic competitions for women. These individuals who typically advocate for equality demonstrate what Cunningham and Melton (2014a) termed "qualified support" (p. 387), which manifests when implicit biases hold people back from showing unequivocal support for marginalized populations.

At the top echelon of certain sports, gender differences might be present. Athletes who have jumped the highest, swum the fastest, or thrown the farthest are all assigned male at birth. Gender differences in the most elite levels of athleticism should not be confused, though, with inherent differences between all men and all women. Instead, sport performance is best viewed on a continuum, from the best to worst (Kane, 1995), and the data show that women's and men's performances fall all along the athletic continuum. As just one example, consider the marathon results from the 2019 Sydney Running Festival. The top time from a woman was 2 hr 24 min. Though slower than six men who competed the race at a quicker pace, her time was still faster than thousands of other competitors, many of whom were men. Or consider New Zealand weightlifter Laurel Hubbard (mentioned previously). Though some academics decried her participation in the Olympics because of the "natural" advantages of athletes assigned male at birth (Richardson & Chen, 2020), Hubbard did not medal in the Olympics.

Essentialist explanations of gender and sport negatively affect all people, transgender and cisgender alike (Cunningham, 2014; Isard, 2021). The underlying message, whether implicit or explicit, is that girls and women are second best, less than, and "the other." Drawing from the robust literature around stereotype threat (Schmader, 2002; Spencer et al., 1999; Stone et al., 1999), Isard (2021) argued that gendered notions of athleticism and exclusionary laws signal that both transgender and cisgender girls do not belong while harming cisgender girls, too. The end result is that they stop playing—a pattern supported by an analysis from the Center for American Progress (Goldberg, 2021) and other analyses of large-scale data (Clark & Kosciw, 2021).

Well-Being

Ensuring sport is welcoming for all athletes also promotes psychological health and well-being. Across society, transgender individuals face considerable stigma, prejudice, and discrimination (King et al., 2020). Sport is no exception (Cunningham et al., 2018; Cunningham & Pickett, 2018; Flores et al., 2020). Cunningham and Pickett (2018), for example, found that people expressed more bias toward transgender individuals than toward lesbian, gay, and bisexual people, and these differences persisted over time. Resistance is stronger toward transgender women than transgender men when the athletes have not undergone hormone therapy and when competing at elite levels of competition (Tanimoto & Miwa, 2021).

People who experience stigma also have decreases in their well-being. For example, laws restricting the rights of transgender people are linked with poorer mental health, increased alcohol use, and fewer doctor visits among transgender individuals (Du Bois et al., 2018). Societal-level forms of stigma aimed at the broader LGBTQ+ community are associated with increased suicide attempts across transgender individuals' lifetimes (Perez-Brumer et al., 2015). The persistent, devastating effects of transgender stigma represents a "public health crisis" (Budge, 2020).

Just as exclusionary practices negatively affect transgender individuals' well-being, inclusive ones have the potential to bolster connectedness and psychological wellness. Cunningham (Cunningham, 2015a, 2015b) conducted a case study of intercollegiate athletic departments known for their inclusiveness toward LGBTQ+ individuals. The study participants noted the importance of the inclusive culture, as they could bring their "whole selves" to the department. They felt more authentic and did not experience sexual or gender stigma. Similarly, for some transgender youth, sport serves as a space where they can escape and develop meaningful relationships (Clark & Kosciw, 2021; Zeeman et al., 2017).

Economics

Finally, transgender inclusion provides financial and economic benefits to sport organizations, governing bodies, and their surrounding communities. According to signaling theory (Connelly et al., 2011), organizations and the parties with whom they communicate have imperfect information about one another. For their part, teams, organizations, and communities seek to influence this gap by sending signals and cues. As one example, people take note of community cues (e.g., its diversity, commitment to arts, active living infrastructure, and the like) as a signal of how open the community is to differences and creative people (Florida, 2005).

The same dynamics occur among sport teams and organizations (Melton & MacCharles, 2021). For example, potential fitness club members express greater intentions to join when the club is explicit in its support of LGBTQ+ individuals (Cunningham & Melton, 2014b). This attraction stems, in part, from the belief that LGBTQ+ inclusion signals that the organization is diverse in many other areas, too (Cunningham & Melton, 2014b). Relatedly, Cunningham has argued that LGBTQ+ inclusion in athletics served to spur creativity and attract the most creative, dynamic employees. If this was the case, then performance should be high in departments where LGBTQ+ diversity and inclusion were high—relationships confirmed across a number of studies with varied methods (Cunningham, 2011a, 2011b, 2015a; Cunningham & Hussain, 2020; Cunningham & Nite, 2020).

Just as inclusiveness signals a welcoming environment for transgender individuals, exclusionary practices potentially signal close-mindedness, indifference, or hostility. By and large, consumers, sponsors, and other entities do not want to be associated with these descriptions. These dynamics help explain why (a) stock prices tumble when organizations engage in employment discrimination, (b) many companies and events left North Carolina after the state legislature passed laws that curtailed the rights of transgender individuals, and (c) the National Collegiate Athletic Association threatened to move major events out of Texas when its state legislature pondered similar bills (Cunningham et al., 2018; Hirsh & Cha, 2015). As the old adage goes, "You are known by the company you keep," and most people want this company to be inclusive and welcoming. In short, transgender exclusion hurts teams, organizations, and their communities (Mallory et al., 2017).

Creating Transgender-Inclusive Spaces

The evidence is clear: transgender individuals belong in sport. How, though, do coaches and sport managers create inclusive spaces? Drawing from our previous research in the area (Cunningham, 2011a, 2011b, 2015a, 2015b; Cunningham & Melton, 2014a; Cunningham, 2019b; Cunningham & Hussain, 2020; Cunningham & Nite, 2020), we point to multilevel thinking, recognizing that factors at the macro-, meso-, and microlevels all influence the inclusiveness (see Figure 1). Multilevel perspectives (a) incorporate the complex nature of sport organizations and (b) reflect an encompassing view of diversity-focused theorizing. Drawing from Cunningham (2019a), we define inclusion as the degree to which athletes, coaches, and administrators "are free to express their individuated self and have a sense of workplace connectedness and belonging" (p. 7). When in inclusive

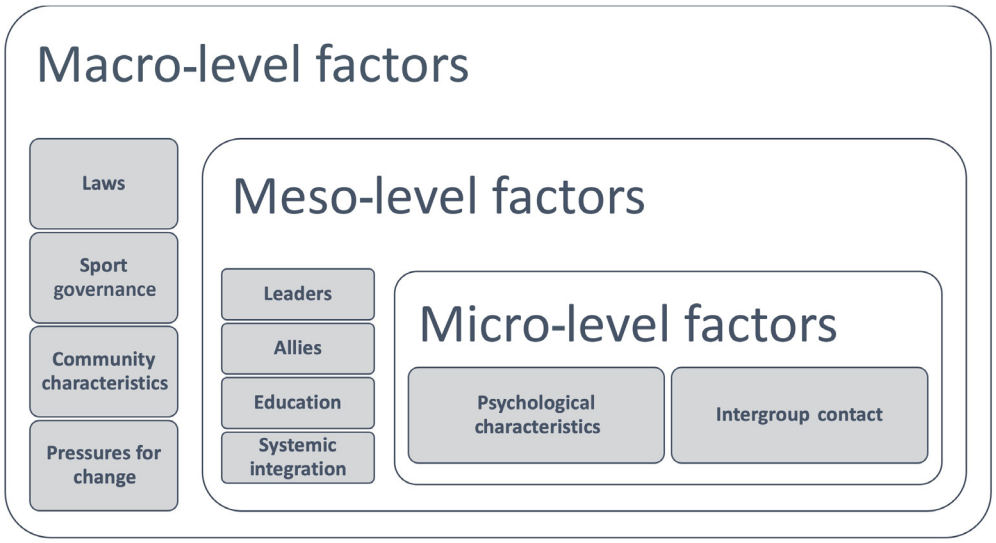

Figure 1 — Multilevel factors influencing transgender inclusion in sport.

sport spaces, transgender individuals can freely share their gender identity and expression while also feeling a sense of oneness and belonging with others.

Macro-Level Factors

Macro-level factors operate at the societal level, including laws, sport governance, community characteristics, and pressures for change. These factors largely operate outside the direct purview of the sport organization or athletic team. Nevertheless, they have the potential to influence transgender individuals' opportunities, experiences, and well-being, as well as the actions coaches and sport managers can take. Furthermore, sport organizations that align their actions with the broader institutional logics are likely to perform at higher levels than their peers (Cunningham & Nite, 2020; Nite et al., 2013).

Laws and ordinances ensure people's rights and protections, or the lack thereof. In many respects, they also signal the underlying values, norms, and assumptions among individuals within the state or community (Brown, 2017). Not surprisingly, legislation governing transgender rights meaningfully affects transgender individuals' well-being (Budge, 2020; Du Bois et al., 2018; Perez-Brumer et al., 2015) and their sport participation (Buzuvis, 2021).

Laws at the federal, state, and local levels also influence sport governance. By and large, the U.S. legal system has ceded eligibility decisions to sport governing bodies, whether at the collegiate, scholastic, or recreational levels. As Buzuvis (2021) noted following a comprehensive review, "constitutional and statutory law are amenable to interpretations that would require sport organizations to allow transgender athletes to compete in the category that matches their gender identity" (pp. 448–449). At the same time, though, politics and sport are closely intertwined, as shown by the 2021 legislative session, when legislators in 37 states introduced bills that would limit sport participation among transgender girls and women (Hunt, 2021). Given these dynamics, Buzuvis encouraged sport managers to remain abreast of ongoing legal and political controversies while also being proactive in establishing inclusive sport opportunities.

Community characteristics also have the potential to influence sport organizations' transgender inclusiveness. Cunningham and Nite (2020) demonstrated these effects in their study of intercollegiate athletic departments. Consistent with previous research on the topic (Cunningham, 2011), they found that LGBTQ+ diversity and inclusiveness were positively related to organizational success. Community characteristics, though, moderated this relationship. Success was highest when the athletic department was inclusive *and* when the share of lesbian, gay, and bisexual individuals in the state high. Similarly, the most successful departments had inclusive strategies and were situated in states with low implicit bias. Finally, inclusive departments were not hurt when they were in states with low LGBTQ + population density or high levels of bias. These collective findings show that sport organizations can perform at the highest levels when their practices align with the prevailing logics in their community, but they are not penalized when that match is not present.

Finally, external pressures for change have the potential to spur change among diversity practices that were otherwise deeply embedded and taken for granted (Cunningham, 2009). People generally express more negative attitudes toward transgender individuals than they do toward lesbian, gay, or bisexual people (Cunningham & Pickett, 2018), and attitudes about sport participation largely mirror this pattern (Tanimoto & Miwa, 2021). However, younger individuals are more likely to identify as transgender and to know someone who is transgender. Not surprisingly, younger individuals also express more positive attitudes about transgender participation in sport or the military than do their older counterparts (McCarthy, 2021). Thus, pressures for greater inclusiveness are likely to mount in the future.

Meso-Level Factors

Meso-level factors operate at the team and organization levels. Salient factors at this level of analysis include leader behaviors, allies for inclusion, education, and systemic integration.

Leaders play an important role in transgender inclusion. From a social learning perspective (Bandura, 1986), "virtually all learning phenomena, resulting from direct experience, can occur vicariously by observing other people's behaviors and the consequences for them" (p. 19). Indeed, sport managers set the tone by relaying what is important, modeling inclusive behaviors, rewarding those who meet expectations, and handing down the negative consequences for those who do not. Case studies of inclusive sport organizations have illustrated that followers take note of inclusive managers and seek to emulate them (Cunningham, 2015a; Klein et al., 2019; Melton & Cunningham, 2014b).

Leaders are not the only ones who model inclusiveness, though. Earlier research focusing on employees' championing behavior showed that coworkers play an important role—sometimes even more so than the formal leader (Cunningham & Sartore, 2010). Melton's research focusing on allies in sport organizations offers further support (MacCharles & Melton, 2021; Melton & Cunningham, 2014a, 2014b). Allies offer support for people who are marginalized or experience discrimination, advocate for social justice and inclusion, and model inclusion through both overt (e.g., speaking up in meetings) and subtle (e.g., noting their gender pronouns) behaviors. Employees take note, irrespective of their sexual orientation or gender identity, as ally behaviors help to establish inclusion as the norm. Importantly, members of underrepresented groups also report feeling more welcomed and included on the team or in the sport organization when allies are present (Sartore & Cunningham, 2010; Trussell et al., 2018).

Education and professional development also play important roles. Few sport organizations engage in diversity training and professional development, relative to those in other business sectors (Cunningham, 2012), but the benefits nevertheless remain. Sport managers in Cunningham's (2015a) study, for example, used videos, book clubs, and guest speakers to introduce and discuss topics around LGBTQ+ inclusion. Coaches and administrators told of how the training prepared them to engage in difficult conversations, better serve the athletes, and address needs in their units. Researchers outside of sport have shown that LGBTQ+-inclusive training and education link with more positive employee attitudes and disclosure, and less strain and perceived discrimination (Webster et al., 2018). Despite these and other advantages, many transgender employees see the need for more workplace training to equip their colleagues with a basic understanding of LGBTQ+ concepts, what to expect when transgender employees disclose their gender identity, and ways to make the work environment more welcoming (Huffman et al., 2021).

Finally, the benefits of any inclusive-focused activities are best realized when they are well integrated into the broader organizational landscape (Cunningham, 2016; Storr, 2021). When diversity-related activities are siloed or only pursued sporadically, players and employees are likely to perceive them as tangential and irrelevant to their everyday tasks. Storr (2021), for example, in their critical analysis of Australian Sport Organizations, argued that

LGBTQ+ inclusion was seen as a "poor cousin of inclusion" (p. 410) and only marginally connected to broader initiatives. As a result, progress toward inclusiveness was stymied. On the other hand, when they are part of a broader emphasis on diversity, the activities are likely to take hold. As one example, sport organization employees are likely to use diversity training in their work when the training is clearly connected with the mission and vision of the workplace (Cunningham, 2012).

Micro-Level Factors

Finally, we focus on micro-level factors, or those specific to the individual. Salient factors include psychological characteristics and intergroup contact.

Many psychological and personal characteristics are associated with attitudes toward transgender individuals. Norton and Herek's (2013) large study of adults in the United States illustrates as much. Attitudes toward transgender individuals were lowest among people who (a) identified as politically conservative, (b) did not embrace egalitarian ideals, (c) were highly religious, (d) endorsed gender binary beliefs, (e) held authoritarian attitudes, and (f) had negative attitudes toward lesbian, gay, and bisexual individuals. Subsequent research in this area has offered similar findings, with researchers also showing how psychological and demographic characteristics are linked with support for transgender rights in the public domain and at work (Lewis et al., 2017; Nagoshi et al., 2019; Rye et al., 2019).

Intergroup contact also plays an important role in shaping people's attitudes toward others (Allport, 1954; Pettigrew, 1998). Contact allows people to learn about others, identify similarities they have with one another, and develop an appreciation for the differences among groups of people. Thus, people who have contact with transgender neighbors, coworkers, family members, or friends are likely to express less prejudice than their peers (Earle et al., 2021). Importantly, the contact need not be in person, as even electronic interactions can reduce prejudice (Boccanfuso et al., 2021). Other forms of contact also elicit positive transgender attitudes, such as seeing transgender individuals in the media (Hoffarth & Hodson, 2018). The latter findings are particularly important in sport, where transgender athletes like Chris Mosier have an increasingly large media presence, thereby signaling the potential for improved attitudes.

Conclusions

Questions about transgender individuals' place in sport persist. The purpose of this paper, therefore, was to explore this topic further. To do so, we first presented five arguments for inclusion: sport as a human right, fairness, gendered notions of athleticism, well-being, and economics. The rationale is clear and unequivocal: transgender individuals belong in sport.

If transgender athletes, coaches, and administrators do belong in sport, what are steps to create diverse and inclusive sport environments? Drawing from multilevel thinking, we outlined factors at the macro (i.e., laws, sport governance, community characteristics, and pressures for change), meso (i.e., leaders, allies, education, and systemic integration), and micro (i.e., psychological characteristics and intergroup contact) levels of analysis. For simplicity, we presented the levels of analysis separately, but we note that factors at any one level can and do interact with those at another (Klein et al., 1999). As just one of many examples, community characteristics are likely to influence the preparedness and educational needs of the workforce, as well as employees' contact with transgender individuals.

Finally, we offered numerous arguments for transgender inclusion and factors for athletes, coaches, and administrators to consider when creating and sustaining inclusive sport spaces. It is important to reiterate, though, our foundational argument: *sport is a human right, and as such, a right for transgender individuals*.

Note

1. "Transgender" refers to an individual whose gender identity (i.e., their identification as a girl or boy, man or woman) does not correspond with their sex assigned at birth. "Cisgender" refers to individuals whose gender identity and sex assigned at birth correspond. We use "transgender" as an umbrella term while also noting that the terminology is not universal, as individuals choose how they identify and the terms they use to describe themselves.

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